

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3129

By: West (Kevin) of the House

and

Sacchieri of the Senate

11 COMMITTEE SUBSTITUTE

12 An Act relating to higher education; amending 70 O.S.
13 2021, Section 2120, as amended by Section 3, Chapter
14 18, O.S.L. 2022 (70 O.S. Supp. 2025, Section 2120),
15 which relates to protected expressive activities on
16 campus; prohibiting public institutions of higher
17 education from charging a security fee for certain
18 expression; providing an effective date; and
19 declaring an emergency.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. AMENDATORY 70 O.S. 2021, Section 2120, as
20 amended by Section 3, Chapter 18, O.S.L. 2022 (70 O.S. Supp. 2025,
21 Section 2120), is amended to read as follows:

22 Section 2120. A. As used in this act:

1 1. "Campus community" means students, administrators, faculty
2 and staff at the public institution of higher education and their
3 invited guests;

4 2. "Harassment" means only that expression that is unwelcome,
5 so severe, pervasive and subjectively and objectively offensive that
6 a student is effectively denied equal access to educational
7 opportunities or benefits provided by the public institution of
8 higher education;

9 3. "Materially and substantially disrupts" means when a person,
10 with the intent to or with knowledge of doing so, significantly
11 hinders another person's or group's expressive activity, prevents
12 the communication of the message or prevents the transaction of the
13 business of a lawful meeting, gathering or procession by:

14 a. engaging in fighting, violent or other unlawful
15 behavior, or

16 b. physically blocking or using threats of violence to
17 prevent any person from attending, listening to,
18 viewing or otherwise participating in an expressive
19 activity. Conduct that "materially disrupts" shall
20 not include conduct that is protected under the First
21 Amendment to the United States Constitution or Section
22 of Article ~~2~~ II of the Oklahoma Constitution. Such
23 protected conduct includes, but is not limited to,
24 lawful protests in the outdoor areas of campus

1 generally accessible to the members of the public,
2 except during times when those areas have been
3 reserved in advance for other events, or minor, brief,
4 or fleeting nonviolent disruptions of events that are
5 isolated and short in duration;

6 4. "Outdoor areas of campus" means the generally accessible
7 outside areas of campus where members of the campus community are
8 commonly allowed, such as grassy areas, walkways or other similar
9 common areas and does not include outdoor areas where access is
10 restricted from a majority of the campus community;

11 5. "Public institution of higher education" means any
12 institution within The Oklahoma State System of Higher Education or
13 technology center schools overseen by the State Board of Career and
14 Technology Education; and

15 6. "Student organization" means an officially recognized group
16 at a public institution of higher education, or a group seeking
17 official recognition, comprised of admitted students that receive or
18 are seeking to receive benefits through the public institution of
19 higher education.

20 B. Expressive activities protected under the provisions of this
21 section include but are not limited to any lawful verbal, written,
22 audio-visual or electronic means by which individuals may
23 communicate ideas to one another, including all forms of peaceful
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1 assembly, protests, speeches and guest speakers, distribution of
2 literature, carrying signs and circulating petitions.

3 C. 1. The outdoor areas of campuses of public institutions of
4 higher education in this state shall be deemed public forums for the
5 campus community, and public institutions of higher education shall
6 not create "free speech zones" or other designated areas of campus
7 outside of which expressive activities are prohibited. Public
8 institutions of higher education may maintain and enforce reasonable
9 time, place and manner restrictions narrowly tailored in service of
10 a significant institutional interest only when such restrictions
11 employ clear, published, content- and viewpoint-neutral criteria and
12 provide for ample alternative means of expression. Any such
13 restrictions shall allow for members of the campus community to
14 spontaneously and contemporaneously assemble and distribute
15 literature.

16 2. Nothing in this subsection shall be interpreted as limiting
17 the right of student expression elsewhere on campus.

18 D. 1. Any person who wishes to engage in noncommercial
19 expressive activity on campus shall be permitted to do so freely, as
20 long as the person's conduct is not unlawful and does not materially
21 and substantially disrupt the functioning of the public institutions
22 of higher education, subject only to the requirements of subsection
23 C of this section.

1 2. Nothing in this subsection shall prohibit public
2 institutions of higher education from maintaining and enforcing
3 reasonable time, place and manner restrictions that are narrowly
4 tailored to serve a significant institutional interest only when
5 such restrictions employ clear, published, content- and viewpoint-
6 neutral criteria. Any such restrictions shall allow for members of
7 the campus community to spontaneously and contemporaneously
8 assemble, speak and distribute literature.

9 3. Nothing in this subsection shall be interpreted as
10 preventing public institutions of higher education from prohibiting,
11 limiting or restricting expression that the First Amendment does not
12 protect or prohibiting harassment as defined by this section.

13 4. Nothing in this section shall enable individuals to engage
14 in conduct that intentionally, materially and substantially disrupts
15 another person's expressive activity if that activity is occurring
16 in a campus space reserved for that activity under the exclusive use
17 or control of a particular group.

18 E. Public institutions of higher education shall not charge
19 security fees to a student or student organization based on the
20 content of the student's or student organization's expression nor
21 the content of the student's or student organization's invited
22 guest's expression.

23 F. Public institutions of higher education shall make public in
24 their handbooks, on their websites and through their orientation

1 programs for students the policies, regulations and expectations of
2 students regarding free expression on campus consistent with this
3 section.

4 ~~F.~~ G. Public institutions of higher education shall develop
5 materials, programs and procedures to ensure that those persons who
6 have responsibility for discipline or education of students,
7 including, but not limited to, administrators, campus police
8 officers, residence life officials and professors, understand the
9 policies, regulations and duties of public institutions of higher
10 education regarding free expression on campus consistent with this
11 section.

12 ~~G.~~ H. 1. Each public institution of higher education shall
13 publicly post on its website, as well as submit to the Governor, the
14 Legislature, and the Chancellor of The Oklahoma State System of
15 Higher Education annually by December 31, a report that details the
16 course of action implemented to be in compliance with the
17 requirements of this section. A report shall also be given in the
18 instance of any changes or updates to the chosen course of action.
19 The information required in the report shall be:

- 20 a. accessible from the institution's website home page by
21 use of not more than three links,
22 b. searchable by key words and phrases, and
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1 c. accessible to the public without requiring
2 registration or use of a user name, password or
3 another user identification.

4 2. The report shall include:

5 a. a description of any barriers to or incidents of
6 disruption of free expression occurring on campus,
7 including but not limited to attempts to block or
8 prohibit speakers and investigations into students or
9 student organizations for their speech. The
10 description shall include the nature of each barrier
11 or incident, as well as what disciplinary action, if
12 any, was taken against members of the campus community
13 determined to be responsible for those specific
14 barriers or incidents involving students without
15 revealing those students' personally identifiable
16 information, and

17 b. any other information each public institution of
18 higher education deems valuable for the public to
19 evaluate whether free expression rights for all
20 members of the campus community have been equally
21 protected and enforced consistent with this act.

22 3. If a public institution of higher education is sued for an
23 alleged violation of First Amendment rights, a supplementary report
24 with a copy of the complaint, or any amended complaint, shall be

1 submitted to the Governor and the Legislature within thirty (30)
2 days.

3 ~~H.~~ I. Any person or student organization aggrieved by a
4 violation of this section may bring an action against the public
5 institution of higher education and its employees acting in their
6 official capacities responsible for the violation and seek
7 appropriate relief, including, but not limited to, injunctive
8 relief, monetary damages, reasonable ~~attorneys'~~ attorney fees and
9 court costs. Any person or student organization aggrieved by a
10 violation of this section may assert such violation as a defense or
11 counter claim in any disciplinary action or in any civil or
12 administrative proceedings brought against such student or student
13 organization. Nothing in this subsection shall be interpreted to
14 limit any other remedies available to any person or student
15 organization.

16 ~~I.~~ J. A person shall be required to bring suit for violation of
17 this section no later than one year after the day the cause of
18 action occurs. For purposes of calculating the one-year limitation
19 period, each day that the violation persists and each day that a
20 policy in violation of this section remains in effect shall
21 constitute a new day that the cause of action has occurred.

22 ~~J.~~ K. If any provision of this section or any application of
23 such provision to any person or circumstance is held to be
24 unconstitutional, the remainder of the section and the application

1 of the provision to any other person or circumstance shall not be
2 affected.

3 SECTION 2. This act shall become effective July 1, 2026.

4 SECTION 3. It being immediately necessary for the preservation
5 of the public peace, health or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval.

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9 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION OVERSIGHT, dated
10 03/04/2026 - DO PASS, As Amended.

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